

SENATE No. 2358

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act setting deadlines for school bus and public fleet electrification, and programs to encourage electrification of private fleets.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>5/9/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>5/16/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>6/6/2025</i>

SENATE No. 2358

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 2358) of Brendan P. Crighton for legislation to promote zero-emission vehicle fleets by 2035. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2218 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act setting deadlines for school bus and public fleet electrification, and programs to encourage electrification of private fleets.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 21N, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting the following definitions:-

3 “Electric vehicle”, a vehicle that relies solely on electric motors for propulsion and
4 includes non-combustion vehicles.

5 “Electric vehicle charging services”, as defined in section 31 of chapter 21A.

6 “Electric vehicle supply equipment”, as defined in section 31 of chapter 21A.

7 “Light-duty vehicle”, as defined in 310 CMR 7.40.

8 “Medium- and heavy-duty vehicles”, as defined in 310 CMR 7.40.

9 “Motor vehicles”, as defined in section 1 of chapter 90.

10 “Motor vehicle fleet”, a set of at least twenty-five motor vehicles under the same
11 ownership or control and registered in the Commonwealth of Massachusetts.

12 “Motor vehicle fleet serving a public purpose”, a motor vehicle fleet of which a portion is
13 leased, rented, or contracted by the Commonwealth of Massachusetts or a municipality or any
14 political subdivision thereof from a person or entity other than the Commonwealth of
15 Massachusetts or a municipality to provide a public service or for its own use, including school
16 buses and paratransit vehicles.

17 “Public motor vehicle fleet”, a motor vehicle fleet owned by the Commonwealth of
18 Massachusetts, a transportation authority, a school district, a public university, a quasi-public
19 agency, or a municipality or in the shared ownership of multiple municipalities, or any political
20 subdivision thereof. A public motor vehicle fleet includes vehicles under the same ownership of
21 the Commonwealth or a municipality, even if a portion of the motor vehicle fleet is under the
22 management or control of separate secretariats, departments, agencies, or offices.

23 “School bus,” as defined in section 1 of chapter 90.

24 SECTION 2. Chapter 21N is hereby amended by inserting after section 7 the following
25 sections:-

26 Section 7A. (a) The secretary, in consultation with the department of energy resources,
27 department of transportation, department of environmental protection, and department of public
28 utilities, shall promulgate rules and regulations to ensure that one hundred percent of light-duty
29 vehicles within public vehicle fleets and motor vehicle fleets serving a public purpose shall be

electric vehicles by 2035. Said regulations shall include, but not be limited to, the establishment of interim targets for fifty percent of light-duty vehicles within said fleets and seventy-five percent of light-duty vehicles within said fleets, a transition plan that ensures equitable deployment of electric vehicles across municipalities, and recommendations for funding, technical assistance, and other incentives to be made available for electric vehicle charging services and electric vehicle supply equipment to support a timely transition in accordance with this section.

(b) The secretary, in consultation with the executive office for administration and finance, shall require that new light-duty vehicles purchased for use in public vehicle fleets and motor vehicle fleets serving a public purpose shall be electric vehicles according to the following deadlines: (i) fifty percent of light-duty vehicles purchased in 2027; (ii) seventy-five percent of light-duty vehicles purchased in 2030; and one hundred percent of light-duty vehicles purchased by 2033. The secretary shall develop data collection and reporting mechanisms to ensure compliance with this section.

Section 7B. (a) The secretary, in consultation with the department of energy resources, department of transportation, department of environmental protection, and department of public utilities, shall promulgate rules and regulations to ensure that one hundred percent of medium- and heavy-duty vehicles within public vehicle fleets and motor vehicle fleets serving a public purpose shall be electric vehicles by 2040. Said regulations shall include, but not be limited to, the establishment of interim targets for fifty percent of light-duty vehicles within said fleets and seventy-five percent of light-duty vehicles within said fleets, a transition plan that ensures equitable deployment of electric vehicles across municipalities, and recommendations for funding, technical assistance, and other incentives to be made available for electric vehicle

charging services and electric vehicle supply equipment to support a timely transition in accordance with this section.

(b) The secretary, in consultation with the executive office for administration and finance, shall require that new medium- and heavy-duty vehicles purchased for use in public vehicle fleets and motor vehicle fleets serving a public purpose shall be electric vehicles according to the following deadlines: (i) fifty percent of medium- and heavy-duty vehicles purchased in 2030; (ii) seventy-five percent of medium- and heavy-duty vehicles purchased in 2033; and one hundred percent of medium- and heavy-duty vehicles purchased by 2035. The secretary shall develop data collection and reporting mechanisms to ensure compliance with this section.

Section 7C. (a) The secretary, in consultation with the department of energy resources, department of transportation, department of environmental protection, and department of public utilities, shall promulgate rules and regulations to ensure that one hundred percent of school buses shall be electric vehicles by 2040. Said regulations shall include, but not be limited to, the establishment of interim targets for fifty percent of school buses and seventy-five percent of school buses, a transition plan that ensures equitable deployment of electric school buses across school districts, and recommendations for funding, technical assistance, and other incentives to be made available for electric vehicle charging services and electric vehicle supply equipment to support a timely transition in accordance with this section.

(b) The secretary, in consultation with the executive office for administration and finance, shall require that new school buses purchased shall be electric vehicles according to the following deadlines: (i) fifty percent of school buses purchased in 2030; (ii) seventy-five percent of school buses purchased in 2033; and one hundred percent of school buses purchased by 2035.

The secretary shall develop data collection and reporting mechanisms to ensure compliance with this section.

Section 7D. The secretary, in consultation with the executive office for administration and finance, shall require that new motor vehicles purchased by the Commonwealth shall be electric vehicles according to the following deadlines: (i) fifty percent of all purchases in 2026; (ii) seventy-five percent of all purchases in 2028; and (iii) one hundred percent of all purchases in 2030. The secretary, in consultation with the executive office of administration and finance, shall establish a centralized joint procurement process for public fleets to reduce procurement costs.

Section 7E. On or before December 31 of each year, the secretary shall publish, in a publicly available online format, annual data on progress toward compliance with sections 7A through 7D, inclusive, including the following: (i) number and percentage of electric vehicles in motor vehicle fleets in the Commonwealth; (ii) number and percentage of electric vehicles in municipally-owned motor vehicle fleets by city and town; (iii) number and percentage of electric vehicles in motor vehicle fleets owned by the Commonwealth; and (iv) number and percentage of electric school buses by school district.

SECTION 3. Notwithstanding any general or special law to the contrary, the department of transportation, in consultation with the department of environmental protection, department of public utilities, department of energy resources, and the intergovernmental coordinating council established by the section 81 of chapter 179 of the Acts of 2022, shall: (i) establish goals for private motor vehicle fleets conversion; (ii) identify and implement necessary incentives to support electric vehicle fleet purchases; (iii) solicit input from owners of motor vehicle fleets

used for public transportation licensed to operate in the Commonwealth pursuant to chapter 90 or chapter 159A on barriers to transition to electric vehicles; and (iv) establish sector-specific goals for motor vehicle fleets used as commercial motor carriers, freight services, limousine services, and taxis registered to operate in the Commonwealth to transition to electric vehicles.

SECTION 4. No later than one year following the effective date of this Act, the department of energy resources, in consultation with the Massachusetts Clean Energy Center and the department of environmental protection shall design and implement an incentive program to reduce barriers to timely conversion of motor vehicle fleets to electric vehicles. No later than 180 days following the effective date of this Act, the department shall conduct a needs assessment identifying vehicle classes, operators, and municipalities for which compliance with the requirements of sections 7A through 7D of said chapter 21N will present a financial burden not met by other public incentive programs to inform the design of the incentive program required under this section.

SECTION 5. The regulations required pursuant to sections 7A through 7D of said chapter 21N shall be promulgated and in effect not later than 180 days following the effective date.